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October 23, 2017					
FEDERAL		MARITIME		COMMISSION	

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-08

**CARLSTAR GROUP LLC f/k/a CARLISLE TRANSPORTATION PRODUCTS, INC.
and CTP TRANSPORTATION PRODUCTS, LLC**

v.

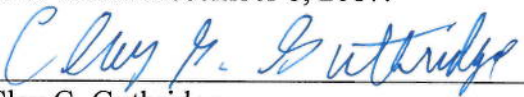
UTi, UNITED STATES, INC.; UTi UNITED STATES, LLC; and DSV AIR & SEA, INC.

SECOND ORDER STAYING PROCEEDING FOR LIMITED TIME

On September 28, 2017, I issued an order staying this proceeding to give the parties an opportunity to engage in settlement discussions and mediation with the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS). *Carlstar Group LLC f/k/a Carlisle Transportation Products, Inc. and CTP Transportation Products, LLC v. UTi, United States, Inc.; UTi United States, LLC; and DSV Air & Sea, Inc.*, FMC No. 17-08 (ALJ Sept. 28, 2017) (Order Staying Proceeding for Limited Time). On October 23, 2017, the parties requested a telephone conference to report the current status of their discussions and request additional time. Derek H. Swanson appeared for Complainants and Ashley W. Craig appeared for Respondents. An audio recording was made of the conference and a copy has been provided to counsel. The Commission does not intend to make a transcript of the conference.

The parties report that because respondent UTi is no longer in operation, it is necessary to obtain documentation from vessel-operating common carriers that transported the shipments. It has taken longer than anticipated to obtain the documentation, which is necessary to facilitate the settlement discussions and would also be necessary if the case were litigated. Therefore, the parties have requested that the stay be extended to permit continued settlement discussion. Upon consideration of the request, and good cause having been stated for a stay, it is hereby

ORDERED that this proceeding be stayed until December 1, 2017, to give the parties an opportunity to continue settlement discussions and engage in mediation with CADRS. If the parties reach a settlement, they are instructed to file the settlement and a motion to approve the settlement as set forth in 46 C.F.R. § 502.72(a)(3) on or before December 8, 2017. If the parties do not settle by December 1, 2017, Respondents must answer or otherwise respond to the Complaint on or before December 8, 2017.


Clay G. Guthridge
Administrative Law Judge